

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

ELITE LOGISTICS CORP., *Complainant*

v.

TANERA TRANSPORT LLC, *Respondent*.

DOCKET NO. 25-27

Served: January 12, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER TO SHOW CAUSE

Elite Logistics Corp. (“Complainant”) filed a Complaint with the Office of the Secretary on December 1, 2025, naming Tanera Transport LLC (“Respondent”) as a Respondent. The Office of the Secretary issued a Notice of Filing of the Complaint on December 4, 2025.

In brief, the Complaint alleges that Complainant is a motor carrier, and that Respondent is an ocean transportation intermediary (“OTI”). Complainant alleges that Respondent violated 46 U.S.C. § 41102(c) by failing to establish, observe and enforce just and reasonable cargo-handling practices, namely Respondent failed to pay six invoices for the transportation of nine containers. Complainant adds that it filed this Complaint because Respondent’s surety denied Complainant’s claim because a judgment had not yet been obtained per 46 C.F.R. § 515.23.

The Commission’s rules provide that:

A respondent must file with the Commission an answer to the complaint . . . within 25 days after the date of service of the complaint by the Commission . . . or unless a motion is filed to withdraw or dismiss a complaint, in which latter case, answer must be filed within 10 days after service of an order denying such motion.

(46 C.F.R. § 502.62(b)).

A party to a proceeding may be deemed to be in default if that party fails: “to answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding.” (46 C.F.R. § 502.65(a)(2)).

Because the Complaint was served by the Office of the Secretary on December 4, 2025, the Answer was due on December 29, 2025. Respondent did not respond to the Complaint on or before December 29, 2025. Respondent appears to be in default. There may be some valid reason why Respondent has failed to respond. Therefore, Respondent will be granted an additional two

weeks to respond to the proceeding and show cause why judgment should not be entered. If Respondent fails to respond to this order by January 26, 2026, a default decision may be entered against Respondent, including an award of reparations to the Complainant, plus additional penalties.

Based on the above, it is:

HEREBY ORDERED that Respondent must respond to the Complaint and show cause why a decision on default should not be entered no later than **January 26, 2026**.

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge